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1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. ***The clerk will NOT contact you.*** Remote appearances by video or telephone can be made utilizing the **Zoom** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - ***Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.***
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXpFQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkxwckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

GUIBER R DIAZ,

Respondent

) Case Number: FCS-11-346342

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Respondent Guilber Diaz (Father) and Other Parent Sarai Ruiz (Mother). They share one minor child: Maria Diaz, age 14 (DOB:12/22/10).
- 2) On November 3, 2025, Father filed a Request for Order seeking modification of the existing child custody and visitation orders. Father requests: (a) joint legal and joint physical custody; and (b) an order that the minor child reside with Father in Los Angeles during the school year and with Mother during school breaks. Mother currently has sole legal and sole physical custody; Father has not had any parenting time with the minor child in the past 10 years. The minor child has a relationship with her paternal grandparents and has connected with Father on the grandparents' phone. According to Father, the minor child wants a relationship with him.
- 3) On November 13, 2025, Mother filed a Responsive Declaration wherein she asks the Court to deny Father's requests. Mother seeks an order that she maintain sole legal and sole physical

1 custody and Father have supervised visitation. Mother also requests a Tier II interview of the
2 minor child.

3 4) At the prior February 19, 2026 hearing, the Court issued the following orders:

4 a. The Court finds good cause to order a Tier II interview of the minor child regarding her
5 desire and/or willingness to have in-person visits with Father. Both parties waived
6 confidentiality.

7 b. Matter continued to April 2, 2026 at 9:00 a.m., in Department 403 for consideration of
8 Tier II report.

9 c. All existing orders regarding custody and visitation shall remain in full force and effect.

10 d. Both parties to file update declarations 10 days before next hearing.

11 5) On April 1, 2026, the Tier II report was filed.

12 6) On April 2, 2026, the Court continued the matter to May 7, 2026, to permit additional time for
13 submission and consideration of Tier II report.

14 7) The Court has reviewed and considered the report.

15 8) On April 29, 2026, Mother filed a declaration, which has been read and considered by the Court.
16 Mother indicated that the minor child was no longer residing with her.

17 **B. Findings and Order**

18 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
19 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
20 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
21 child(ren) is the United States.

22 2) **The parties are ordered to appear** as the Court is concerned about the minor child's well-being.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

ANTOINE MAURICE ELLIS,

Respondent

) Case Number: FCS-17-352370

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME);
REQUEST FOR ORDER FOR CHANGE OF TEMPORARY EMERGENCY ORDER, CHILD
CUSTODY, VISITATION (PARENTING TIME), VACATE ORDERS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties to this action are Respondent Antoine Maurice Ellis (Father) and Other Parent Lamisha Hempstead (Mother). They share one minor child: Layla Ellis (DOB: 05/07/17).
- 2) On October 30, 2025, the Court conducted a review hearing. Minor's Counsel's report was considered and both parties agreed on the Court's adoption of the recommendations of minor's counsel. The Court set a further review hearing on December 30, 2025.
- 3) On December 1, 2025, Father filed a Request for Order seeking modification of the custody and visitation orders. The Request for Order was set for hearing on January 5, 2026.
- 4) On December 26, 2025, Minor's Counsel submitted an additional report raising serious concerns regarding Father.
- 5) On December 30, 2025, the Court continued the review hearing to January 5, 2026 to be heard at the same time as Father's December 1, 2025 Request for Order.

- 1 6) On January 6, 2026, Father requested additional time to retain counsel. The Court originally
2 referred the matter to Family Court Services (FCS) Mediation on February 24, 2026 and set a
3 hearing on Father's December 1, 2025 Request for Order on March 10, 2026. However, upon
4 further consideration and given the complexity of the issues, the Court *sua sponte* reset the matter
5 for February 4, 2026 on its long-cause calendar. The Clerk was instructed to contact Minor's
6 Counsel and to mail the Findings and Order After Hearing directly to the parties.
- 7 7) On February 4, 2026, Father and Mother did not appear. The Court made a finding of good cause
8 to confirm the existing orders wherein the parents shared joint legal and joint physical custody.
9 However, given Minor's Counsel's interactions with the parties and the minor child, the Court
10 determined it was in the minor child's best interest to change the 2/2/5 schedule to a week
11 on/week off schedule. The Court granted Minor's Counsel's request to be relieved.
- 12 8) On February 11, 2026, Father filed a Request for Temporary Emergency (Ex Parte) Orders
13 wherein he asked the Court to vacate its child custody and visitation orders. The Court denied
14 Father's request for emergency orders and set the matter for regular hearing on March 26, 2026.
15 Father requests that the Court vacate the child custody and visitation orders entered on February
16 4, 2026.
- 17 9) On March 13, 2026, Mother filed a Request for Order seeking modification of the existing child
18 custody and visitation orders. Mother requests sole legal and sole physical custody with
19 supervised visitation for Father. Mother's Request for Order was set for hearing on April 30,
20 2026, at 1:30 p.m., in Department 414.
- 21 10) On March 26, 2026, the Court advanced the April 30, 2026 hearing to March 26, 2026. The Court
22 then continued the matters to May 7, 2026. The Court further ordered all exchanges of the minor
23 child for the week on/week off schedule to occur every Friday after school, per the agreement of
24 the parties.
- 25 11) On April 2, 2026, Father filed another Request for Order to modify child custody and visitation
26 on the basis of "Concealment and Due Process Violation," which is set for hearing on May 18,
27 2026.
- 28 12) On April 8, 2026, Father filed an Income and Expense Declaration.
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1 13) On April 29, 2026, Father filed “Respondent’s Declaration in Opposition to Current Visitation
2 Schedule,” which has been read and considered by the Court.

3 **B. Findings and Order**

4 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
5 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
6 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
7 child(ren) is the United States.

8 2) The Court advances Respondent’s Request for Order filed on April 2, 2026 (originally set for
9 hearing on May 18, 2026) to May 7, 2026 at 9:00 a.m. in Dept. 403.

10 3) As such, the Court disposes of the following Requests for Orders with the orders made herein:

11 a. Father’s Request for Order filed on February 11, 2026 (ex parte application);

12 b. Mother’s Request for Order filed on March 13, 2026; and

13 c. Father’s Request for Order filed on April 2, 2026.

14 4) Preliminarily, the Court confirms its prior order that both parents have joint legal and joint
15 physical custody.

16 5) As to the parenting plan (i.e., visitation), the Court will modify the existing week off/week on
17 schedule. Commencing May 7, 2026, Mother’s parenting time shall be on the 1st, 3rd and 4th
18 weekends of each month from Friday after school until Sunday at 6:00 p.m. This plan shall be in
19 effect during the child’s school year.

20 6) During the child’s summer break, the parenting plan shall be modified to a week on/week off
21 schedule, with exchanges to occur on Sundays at 6:00 p.m. Mother’s first week shall commence
22 on the first Sunday after school lets out for summer break. The parents shall rotate the schedule
23 on a week on/week off basis thereafter until the child returns to school. Once the child returns to
24 school, Mother’s parenting time will revert to the 1st, 3rd and 4th weekends of each month from
25 Friday after school until Sunday at 6:00 p.m.

26 7) All prior orders, not in conflict with the orders herein, shall remain in full force and effect.

27 8) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LETICIA M RODRIGUEZ,

Petitioner

VS.

WENWU JIN,

Respondent

) Case Number: FDI-19-792402

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Leticia M. Rodriguez and Respondent Wenwu Jin.
- 2) According to the Petition and Response, both parties indicate that the date of marriage is 8/8/08 and date of separation of 10/1/19 for a marriage of 11 years and 1.5 months.
- 3) On 2/18/26, Petitioner filed a Request for Order seeking \$40,000 in Family Code section 2030 attorney's fees. Petitioner asserts a disparity in income as Petitioner earns approximately \$200,000 per year working as a nurse while Respondent's earns more than \$1,000,000 per year from his urology practice and associated businesses. Petitioner states she has not received child or spousal support since January 2024, at which time significant arrears already existed.
- 4) On 2/18/26, Petitioner filed an Income and Expense Declaration.
- 5) On 2/18/26, Petitioner filed an attorney declaration substantiating Petitioner's request for \$40,000 in Family Code section 2030 attorney's fees.
- 6) On 2/18/26, Petitioner filed a Memorandum of Points and Authorities.

1 7) On 2/24/26, Petitioner filed a Proof of Service indicating the Request for Order and supportive
2 pleadings were served on Respondent by mail on 2/24/26.

3 8) Respondent did not file a Respondent Declaration.

4 **B. Findings and Order**

5 1) Petitioner's unopposed request for \$40,000 in Family Code section 2030 attorney's fees is
6 GRANTED.

7 2) The Court finds an award of attorney's fees and costs is appropriate here because there is a
8 demonstrated disparity between the parties in access to funds to retain or maintain counsel and in
9 the ability to pay for legal representation.

10 3) The Court further finds that Respondent has or is reasonably likely to have the ability to pay for
11 legal representation for both parties based on Petitioner's estimation of Respondent's income on
12 her Income and Expense Declaration filed 2/18/26, which was signed under penalty of perjury.
13 Petitioner estimated that Respondent earns \$127,500 per month based on Respondent's 2024 tax
14 return.

15 4) Finally, the Court finds \$40,000 in attorney's fees and costs is reasonable and necessary.

16 5) Respondent shall pay half of the balance (i.e., \$20,000) by 6/7/26 and the other half of the
17 balance (i.e., \$20,000) by 7/7/26.

18 6) Counsel for Petitioner shall prepare the Findings and Order After Hearing.

19 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
20 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
21 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
22 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
23 proposed order after hearing directly to the court. Failure to submit the order after hearing within
24 10 days may allow the other party to prepare a proposed order and submit it to the court in
25 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHELLE K DIAMOND,

Petitioner

VS.

LEE S DIAMOND,

Respondent

) Case Number: FDI-21-795339

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF ORDER SHORTENING TIME; REVIEW OF CUSTODY
AND VISITATION FOLLOWING RECEIPT OF CUSTODY EVALUATION; REQUEST FOR
ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
SEE ATTACHMENT 9; REQUEST FOR ORDER FOR CHANGE OF ORDER SHORTENING TIME;
REQUEST FOR ORDER FOR CHANGE OF ORDER SHORTENING TIME

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Michelle Diamond (Mother) and Respondent Lee Diamond (Father).
They share two minor children: Jonah Diamond (DOB: 12/10/14) and Micah Diamond (DOB:
01/27/18).
- 2) On March 5, 2026, Mother filed an ex parte application seeking modification of the child custody
and visitation orders, appointment of minor's counsel, and a Tier II evaluation. The Court issued
some interim orders and set the matter for hearing on an Order Shortening Time (OST) for March
13, 2026.
- 3) On March 13, 2026, the Court ordered the following relevant orders:

- a. Counsel shall meet and confer about whether the Court should appoint minor's counsel or whether the parties should participate in a comprehensive Child Custody Evaluation or Brief Focused Assessment.
 - b. The Court is not modifying any of the legal or physical custody orders made in this matter....
 - c. Counsel shall meet and confer to find dates to return to court within 10 to 20 days of the date of this order (March 13, 2025). Counsel shall file a joint status statement three days in advance of whatever review hearing date is agreed upon by the parties and counsel.
- 4) On April 21, 2025, a review hearing was held, and the Court declined to make any changes to legal or physical custody. The Court refined some of its prior orders and denied Mother's request for the appointment of minor's counsel (see Findings and Order After Hearing (FOAH) filed April 25, 2025). The Court set a further review hearing on June 25, 2025.
 - 5) On May 14, 2025, Father filed an ex parte application seeking modification of child custody and visitation orders. The Court denied Father's requests pending hearing on May 20, 2025.
 - 6) On May 20, 2025, the court set the matter for long-cause hearing on May 29, 2025. The Court confirmed the current child custody visitation orders made on April 21, 2025 (see FOAH filed April 25, 2025). The parties also stipulated to an evaluator to conduct the Brief Focused Assessment.
 - 7) On May 29, 2025, the Court issued an order appointing a child custody evaluator. In particular, the Court appointed Dr. Rhonda Lindsey to perform a full child custody evaluation. The Court ordered the costs split 50/50, but reserved jurisdiction over the reallocation of such costs. The matter was set for further review of child custody and visitation and status of the custody evaluation on July 18, 2025 at 1:45 p.m., Department 404.
 - 8) On June 18, 2025, Father filed another ex parte application seeking a change in custody and that the court grant approximately 20 specific orders related to custody and parenting time. The Court set Father's ex parte application for hearing combined with the July 18, 2025 hearing.
 - 9) On July 18, 2025, the Court heard the matter and issued comprehensive orders (see FOAH filed July 21, 2025). Ultimately, the Court set a review hearing on September 4, 2025 for review of parenting time and to check in on the status of the custody evaluation.

- 1 10) On September 4, 2025, the matter was heard, and the Court issued further orders (see FOAH filed
2 September 16, 2025). Ultimately, the court declined to change custody and continued the matter
3 to January 7, 2026 at 1:45 p.m., for status of the custody evaluation.
- 4 11) On December 5, 2025, the Court reassigned the matter to Department 403 and the January 7,
5 2026 hearing was moved to January 27, 2026 on the Court's own motion.
- 6 12) On January 20, 2026, the Court granted Mother's request to continue the January 27, 2026
7 hearing to March 19, 2026, as the custody evaluation had yet to be completed.
- 8 13) On February 24, 2026, Mother filed an ex parte application seeking an OST on a Request for
9 Order for Educational Decision making for 2026. The Court denied Mother's motion pending
10 regular hearing and the matter was set for readiness hearing on April 6, 2026.
- 11 14) On March 11, 2026, the Court granted Mother's request to continue the March 19, 2026 hearing
12 to April 23, 2026.
- 13 15) On April 6, 2026, the Court was informed that the child custody evaluation had been completed.
14 The Court advanced the April 23, 2026 hearing and the Court set all pending child custody and
15 visitation motions for long-cause on April 24, 2026, at 1:45 p.m.
- 16 16) On April 22, 2026, all pending child custody and visitation motions set for hearing on April 24,
17 2026 were continued to May 7, 2026, at 9:00 a.m. on the Court's own motion.

18 **B. Findings and Order**

- 19 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
20 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
21 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
22 child is the United States.
- 23 2) After review and consideration of the child custody evaluation – Dr. Rhonda Lindsey's Evidence
24 Code section 730 evaluation dated April 2, 2026 – the Court finds good cause to adopt the
25 recommendations as the order of the Court. In particular, the Court adopts all recommendations
26 set forth on pages 107-117, which are attached hereto and incorporated herein. Effective
27 immediately, these recommendations shall become the order of the Court.
- 28 3) The Court will prepare the Findings and Order After Hearing.
- 29



DECISION-MAKING / LEGAL CUSTODY, PARENTING PLAN, AND THERAPEUTIC RECOMMENDATIONS

Rhonda Lindsey, Psy.D. pursuant to an order by the California Superior Court, County of San Francisco, as well as ordered by Judge Anne Costin, performed a parenting plan evaluation in the matter of Michelle Diamond versus Lee Diamond (Superior Court Case Number: FDI-24-795339). The following recommendations are offered based on the findings of this parenting plan evaluation.

- I. Michelle and Lee are to have joint legal and physical custody of Jonah and Micah for all medical, dental, therapeutic, educational, and extracurricular activities. It is recommended that the parents be sanctioned to pay fines to the court for failing to cooperate with the following recommendations.
- II. Jonah and Micah are to have a 2-2-5-5 with the children being with Lee on Mondays and Tuesdays and with Michelle on Wednesdays and Thursdays, alternating weekends. They are to be exchanged outside of the parents' homes. Neither parent is to enter the other parent's home.
- III. After one year (12 months), once the parents have learned to cooperate regarding extracurricular activities, it is recommended that the children move to a week-on/week-off parenting time schedule with exchanges at school on Monday mornings. If there is no school, the exchanges are to occur at 9:00 a.m. It is important that the parenting plan be based on the children's needs, rather than simply allowing parents to have their separate activities for the children. Fewer transitions would help the boys settle into one home and decrease stress. The parents will need to cooperate with taking the boys to their scheduled activities and appointments.

Michelle Diamond versus Lee Diamond

IV. Holiday and Vacation Schedule:

A. Thanksgiving:

1. Monday at 9:00 a.m. through Wednesday, 9:00 a.m., the children are to be with Father on odd-numbered years and with Mother on even-numbered years.
2. Wednesday 9:00 a.m. until Monday school drop-off, the children are to be with Father during even-numbered years and with Mother on odd-numbered years.

B. Winter Break:

1. Friday pick-up from school release until Saturday at 9:00 a.m., the children are to be in Mother's care during even-numbered years and in Father's care during odd-numbered years.
2. Saturday at 9:00 a.m. until school drop-off on Monday when school resumes, the children are to be in Mother's care during odd-numbered years and in Father's care during even-numbered years.

C. Spring Break:

1. Friday pick-up from school release until Wednesday at noon, the children are to be in Mother's care in odd-numbered years and in Father's care in even-numbered years.
2. Wednesday at noon until school drop-off the day school resumes, the children are to be in Mother's care in even-numbered years and in Father's care in odd-numbered years.

D. 3-Day Weekends: The children are to remain with the parent who has them for the weekend for the Monday holiday.

E. Jewish Holidays: Will include the evening before the holiday, beginning a school pick-up or 3:00 p.m. through the holiday during which the children are permitted to miss school. The children are to be returned to school or to the other parent the following day at 9:00 a.m.

Michelle Diamond versus Lee Diamond

1. Rosh Hashanah: Mother shall have care of the children in even-numbered years, and Father shall have them in odd-numbered years.
 2. Yom Kippur: Father shall have care of the children in even-numbered years, and Mother shall have them in odd-numbered years.
 3. Passover:
 - a) First Night of Passover: In even-numbered years, Father will have care of the children on the first night of Passover, and Mother on odd-numbered years. In odd-numbered years, Mother will have care of the children the first night of Passover, and they will be with Father on even-numbered years.
 - b) Second Night of Passover: In even-numbered years, Mother will have care of the children the second night of Passover, and they will be with Father on odd-numbered years.
 - F. Halloween: Father shall have care of the children on odd-numbered years, and Mother will have care of the children on even-numbered years from school pick-up (or 3:00 p.m.) until the day after Halloween at school drop-off (or 9:00 a.m.).
 - G. Mother's Day/Father's Day: The children shall spend Mother's Day with Mother and Father's Day with Father from 9:00 a.m. until school drop-off the next day (or 9:00 a.m.)
 - H. Fourth of July: Father shall care of the children in odd-numbered years, and Mother shall have them in even-numbered years from 9:00 a.m. on July 3rd, continuing until 9:00 a.m. on July 5th.
 - I. Vacations: Michelle and Lee are to have two one-week vacations with the children, which they can take separately in 2026. In 2027 and beyond, they may use the vacation weeks as two separate weeks or as a single two-week period. The parents are to put their vacation requests in writing to the other parent at least two months in advance. They are to provide the flight itinerary and lodging details to the other parent two weeks in advance. Passports are to be kept up to date and transferred to the traveling parent two weeks in advance. Each parent is to have a copy of each child's passport.
- V. The children are not to call or have FaceTime with the distant parent on transition days. On other days, they may have one call with the distant parent for up to 10 minutes if the child asks. Otherwise, each parent is to facilitate a scheduled FaceTime call with

Michelle Diamond versus Lee Diamond

the distant parent on Sunday at 5:00 p.m. during their 5-day parenting time. During holidays and vacations lasting one week or more, the children are to have two scheduled video chat calls with the distant parent. These calls are to be private between the child and the parent being called.

- VI. The parents are to replace parent coaching with Mr. Jed Purses with a Parenting Coordinator (PC) or a private judge for a minimum of 12 months. If the parents refuse to hire a PC or private judge, it is recommended that they be court-ordered to hire a Child Custody Recommending Counselor for the same duration and with the same goals. There can only be one change of provider within the 12-month period. The PC, or private judge, is to serve as the tie-breaker for any decision the parents cannot reach on their own. The PC of a private judge is to impose sanctions, including fines, for any refusal to cooperate or failure to make the recommended parenting changes. Recommended PCs include David Donner, Ph.D., Debra Wald, Esq., Steven Friedlander, Ph.D., or Sheryl B. Hausman, Ph.D. Private judges include Hon. James Bertoli, Hon. Victoria Wood, Hon. David Fink, and Hon. Charlotte Walter Woodland. The goals of the PC or private judge include:
- A. To help the parents shift from their complaints about each other and their ongoing feud to learn to become coordinated in their goals for the children and basic behavioral interventions. They are to learn to negotiate and make decisions together. If they cannot negotiate, the PC or judge will provide necessary recommendations or court orders.
 - B. Parents are to communicate via Our Family Wizard and are to respond to one another within 24 hours. Communications are to be business-like and void of any expressions of hostility.
 - C. The parents are to tell Jonah and Micah that they are working together to raise them. They are to stress to Jonah that his parents want him to get well and will work together to help him. Michelle and Lee are to apologize to the children for any negative things they have said about the other parent.
 - D. Michelle and Lee are to stop all conversations with the children about the divorce, co-parenting conflicts, and any details that are adult business. If the children ask questions, the parents are to state that this is adult business and not share any information with them other than that they are working together now.
 - E. Despite their lack of trust in the other parent, Michelle and Lee are to actively facilitate the children's relationship with the other parent by having a picture of the other parent in the children's bedroom, initiating calls, sending cards and presents

Michelle Diamond versus Lee Diamond

for birthdays and holidays, and stressing the positive qualities of the other parent. Not doing so is putting their own grievances before their children's best interests.

- F. It is imperative that the parents greet each other at exchanges and at the children's events in front of the children. Not to do so will lead to sanctions. They are to avoid hostile tones in their emails and actively demonstrate an effort to cooperate and share information.
- G. The parents are to cooperate with Jonah's treating professionals and to administer prescribed medication. He has such severe symptoms that it is necessary to fully cooperate with the doctors' and therapists' recommendations. Parents can discuss treatment options and make decisions along with providers, but blatant noncompliance with medical and therapeutic treatment could lead to sanctions. Jonah is not to be given the authority to decide whether or not to take medication because he is only 11 years old, and his parents are to decide and administer it to him.
- H. The PC is to ensure both parents are in communication with treating providers and are working cooperatively and respectfully with them. Adherence to recommended therapeutic treatment is to be monitored.
- I. The parents are to hire a new pediatrician for Jonah so that the doctor has familiarity with both parents and is not biased against one or the other. The current pediatrician is highly aligned with Michelle and has stated that Jonah should not live with Lee, but she is not familiar with the entire family system and has obviously been influenced by Michelle against Lee.
- J. The parents are to work with the PC to negotiate consistent rules, such as how online and media content is monitored, what parental controls should be in place, and how children can contact a parent in an emergency. The Court has not allowed cell phones or smart watches at Lee's house because Michelle was contacting the boys excessively.
- K. If, after one year of attempts to work with the PC or judge, there is evidence that one or the other parent is failing to cooperate with efforts to negotiate or is not abiding by court orders, it is recommended that that parent be court-ordered to take more co-parenting classes and to another year of counseling to learn how to co-parent.

Michelle Diamond versus Lee Diamond

- VII. Parenting changes to be made immediately and monitored by PC and treating counselors:
- A. Neither parent is to sleep with the children, and they are to stress that they are safe in their rooms at night, even if the child feels afraid. Rewards can be given if a child stays in his room all night.
 - B. Parents are to remove themselves from a child having a tantrum and allow them to soothe themselves. They are to stress that they will talk with the child when he is calm.
 - C. Parents are never to refuse to speak to the children or avoid interacting with them as a form of punishment because “silent treatment” is emotionally abusive and vague and confusing. Instead, parents should express their anger or frustration directly to their children and establish ground rules to address the problem. If a parent is feeling emotionally overwhelmed, they can tell the children they are going into their room for about 20 minutes to calm down and will be out later.
 - D. Lee and Michelle are to avoid making any negative statements about the other parent at any time. They are not to indulge the children with details about court involvement or their own conflicts with the other parent, even if the child asks. Instead, these parents are to tell the children that their mother and father are working together as a team to parent them, and if they have any adult business to resolve, it is not for the children to know. This statement of unity is to avoid placing the children in a loyalty bind and to alleviate their stress from knowing too much about adult conflicts. The parents can redirect the children to focus on their own behavior, academics, and activities rather than the parents’ business.
 - E. If the parents have different opinions on religion, food, politics, or other issues, and the children ask about that, the parents are to explain to the children that people have different perspectives, but at their house, these are the rules or the way of thinking, without saying anything about the other parent being wrong.
 - F. Parents are to greet each other briefly with civility at exchanges and events in front of the children with a simple hello or statement about something positive the children did. If there is any business to address, the parents are not to discuss it at exchanges; instead, they are to contact each other later to have that discussion privately. Not greeting the other parent is immature, rude, hostile, and creates tension for the children and erodes the co-parenting relationship. All displays of hostility or telling other parents to step back must end. That behavior is damaging the children.

Michelle Diamond versus Lee Diamond

- G. Parents are not to show up at school drop-offs or pick-ups when it is not their parenting time.

Given these parents' past refusal to change their behavior, it is recommended that sanctions be imposed for noncompliance. They lack insight into their behavior or motivation to change. Therefore, if either parent fails to perform these actions, it is recommended that the court issue sanctions, including monetary payments or consider a temporary reduction in parenting time.

THERAPEUTIC PARENT AND CHILD RECOMMENDATIONS:

- I. It is recommended that the court order that each parent complete an online co-parenting class within two weeks of this evaluation report. Some recommended courses include Happy Heart Parenting, Start Together for Kids, or Courses Education Online School.
- II. Michelle and Lee are both recommended to be court-ordered to have a counselor who is specialty trained in high-conflict divorce for the duration of at least 16 sessions, meeting twice a month minimally. They are not to change counselors more than once during that 12-month period.
 - A. Recommended counselors for Michelle include Dene Carroll, L.C.S.W., Elizabeth Crenshaw, L.M.F.T., or Janella Street, Ph.D. Michelle's goals in counseling would be:
 1. To help her learn to separate from her children and to soothe her anxiety about their well-being with Lee. She is to work to decrease her dependency on the children to find other ways to meet her needs for intimacy or activities. The boys are growing older and developmentally need to differentiate and separate from her. She is to learn to promote this autonomy and independence, avoid excessive embraces, and have the boys sit in their own chairs. She is to avoid seeking excessive contact with the boys during their parenting time with their father.
 2. Michelle needs to learn Cognitive Behavioral Therapy techniques for her anxiety. If the treating therapist is not a specialist in this area, Michelle is to seek services at Pacific Anxiety Group, San Francisco Stress and Anxiety Center, or the Bay Area Center for Anxiety. If she does not learn these specific skills, she may continue to inadvertently provide accommodations that promote Jonah's dependency.

Michelle Diamond versus Lee Diamond

3. Eliminate any parental alienating behaviors, such as excluding Lee's name as a contact on forms or failing to provide information to him about the children. Facilitate the children's close and meaningful relationship with their father by encouraging them to be with him and to inform their friends' parents that she approves of friends going to Lee's house.
 4. Michelle needs to learn to become assertive in her parenting to continue to impose appropriate limits for the children. She seems to cave in to Jonah's demands and allows him to dominate her, or he will throw a tantrum. She needs to learn to assert her parental authority with a more detached attitude about Jonah's reactions.
 5. The counselor needs to help Michelle learn what appropriate physical contact with a pre-teen boy is and to have her learn to avoid embracing Jonah in an excessive manner. It seems that she has a particular need to attend to Jonah and needs to learn to separate from him more. Michelle needs to balance her attention by spending focused time with Micah and detaching from making Jonah the family's focus.
- B. Recommended counselors for Lee include Jennifer Santos, L.M.F.T., Thomas Gallahan, L.M.F.T., and Judith Phillip-Sill, Ph.D. It is recommended that Lee have one more session with Niel Brown, L.C.S.W., and end that treatment in order to focus his therapeutic efforts on a counselor trained to help him learn to work cooperatively with Michelle. Lee's goals in counseling would be:
1. To learn that attempting to cooperate with Michelle and with treating professionals is the only way to be a good father to his children. His determination to function on his own and to reject help is only harming his children. This would mean he would not always get to do things his way and would need to be open to new information. His oppositional resistance stems from the notion that he knows better than anyone else, but this thinking is erroneous. Lee has held misguided ideas that have led the children to excessive worry about vaccines, medications, and professional treatment.
 2. Lee needs to examine his fears about health and safety for the children so that he does not cause them more anxiety due to his rigid thinking about diet and medicines. He needs to learn to be more flexible in his thinking and to be willing to acknowledge his anxiety and somatic concerns, which might be exaggerated.
 3. To help Lee learn social skills to come across to professionals, teachers, and Michelle with more respect, courtesy, and civility. He tends to become easily

Michelle Diamond versus Lee Diamond

argumentative, not speak to people, glare, or exhibit noxious interpersonal behavior that can be corrected with skills training. He could review John Gottman's (Gottman.com) skills for couples' communication, which are applicable to all relationships, and especially necessary for his ongoing co-parenting relationship with Michelle.

4. Lee is to learn Anger Management Techniques to learn to self-soothe when he is upset to avoid lashing out. He is to learn to communicate assertively and to avoid any silent treatment or passive-aggressive, indirect expressions of revenge or grievance, and to, instead, directly communicate to resolve issues.

III. It is recommended to be court-ordered to family systems counseling for Jonah with a specialty-trained counselor for high-conflict families. Jonah is to have one more session, each with Raquel Buchanan, L.M.F.T., and Max Berlyant, Ph.D., to solidify gains and to end treatment, transition to the new court-ordered family counselor within one month. Jonah is to have a treatment team comprised of his current psychiatrist, physical/occupational therapists, and the new family therapist. He is not to have excessive providers, which would support a "sick child" identity. The only additional appropriate service is possibly an ABA in-home behavioral plan, as cited below. The parents are not to request copies of the family counselor's clinical notes, as this is not appropriate. Minor clients have a right to confidentiality with their counselor. Recommended family therapists include Kathy Sinsheimer, L.M.F.T., Ann Cerney, L.P.C.C., or Ph.D., L.M.F.T. The goals of family counseling would be:

1. To help Jonah learn CBT techniques for anxiety and possible panic disorder, and to learn to self-soothe without parental coaching.
2. To learn to assertively communicate his feelings.
3. The family therapist is to ensure that Jonah is having private video or phone calls with the distant parent, as stated previously.
4. To work with Jonah and each parent separately to directly express his anger and any unresolved feelings to improve his relationship.
5. Specifically, the family counselor is to ensure that Lee has stopped confiding in Jonah about his conflicts with Michelle, has stopped saying negative things about her, and is politely greeting his mother at exchanges. Jonah is to be given a safe space to directly tell his father how these behaviors have caused negative feelings towards his father, and Lee is to apologize and recognize the harm he has caused his children.

Michelle Diamond versus Lee Diamond

6. The family counselor is to monitor for any parent alienating behavior by either parent to dissuade the child from having a close and meaningful relationship with the other parent. The family counselor is to assess and address Jonah's repeated statements that he will not walk until his mother has full custody, and to involve the mother to state that he will walk, and that his abilities and disabilities are not tied to the Court's decision about custody.
 7. To work to promote Jonah's independent functioning and emerging autonomy. The family counselor is to provide parent coaching for Michelle when needed to help her parent the boys in a manner that does not promote dependency on her and to use age-appropriate displays of affection.
 8. The parents are to assert appropriate generational boundaries and to make it clear to the children that they will work together to make rules as the bosses of their households.
 9. Jonah is to attend school every day and complete his work in class and his homework every day, and not be allowed to get away with avoiding his academic work. The family therapist can help the parents with a behavioral plan where the child has no privileges until his work is complete each day. His attendance and school compliance are not to depend on the FND symptoms. Regardless of his disabilities, Jonah is to be informed that he must go to school and do all of the work every day.
 10. Jonah's depression and anxiety are to be continuously assessed. His suicidal statements need to be taken seriously. Parents are to take Jonah to the emergency room if he says he sincerely feels like harming himself.
- IV. Stanford does not have a Functional Neurological Disorder (FND) program despite one being listed on their website. Jonah has been evaluated by the Stanford FND neurologist and referred to the Anxiety Clinic, which provides only the services of a psychiatrist. Jonah has never been treated by a clinic that specializes in FND. Both parents could benefit from more education about this disorder and from receiving coordinated guidance to help Jonah improve. Other treatment options include La Selva Group in Palo Alto and Bay Area Neuropsychiatry. These parents are to consider whether one of these treatment programs would be more helpful. If they decide to remain with Stanford, it is important that both parents consult with Jonah's treating psychiatrist, neurologist, and occupational/physical therapist to better understand this puzzling disorder and how they can work together to help Jonah.

Michelle Diamond versus Lee Diamond

Michelle and Lee could consider exploring other treatment options for FND. They could consider using Applied Behavior Analysis (ABA) to determine the function of Jonah's target behaviors and create a behavioral plan for each home. Recommended ABA therapy services include Songbird Therapy, Butterfly Effects, or Interconnect Therapy.

It is recommended that both parents have at least some behavioral similarities in order to participate in a behavior modification program for Jonah. Michelle and Lee are to point out to Jonah that his parents are working together to help him get well. This statement is to help Jonah be relieved of the stress of being in the middle of his parents' conflicts. Even if Lee and Michelle disagree about Jonah's treatment, they are to highlight the commonalities they share and keep their conflict and differences out of the children's earshot. Michelle and Lee do not have to like each other or have a close relationship, but they do need to cooperate in some key ways for Jonah, who has severe disabilities.

- V. It is not recommended that Micah be in therapy at this time. He has not expressed needed goals in his current therapy, and it is not appropriate to have an 8-year-old boy in therapy just for therapy's sake. Any future therapist for Jonah would need to work with both parents from the onset.

Educational Recommendations:

Jonah is recommended to remain in the public school system, as private schools do not offer services for children with special needs. The parents need to consider the current school's recommendations regarding whether Jonah has mastered fifth-grade academics, and, if not, retain him at the current school for another year until his academic and functional performance has improved.

The parents must be firm about school attendance and not allow Jonah to come home for somatic complaints. He is not to miss school unless he is seriously ill or contagious. It is also imperative that these parents insist on compliance with classwork and homework. The parents are to leave Jonah at school for the entire day every day and not linger in the building if he protests attendance.

Jonah has not been compliant with academic work for 1.5 years now. He is at risk of academic failure in middle school without remediation in his study habits. The parents might need to hire a tutor, but they could withhold privileges until his work is complete and monitor that his work is completed each and every day. Enabling him by making excuses for his lack of compliance with the work will not help prepare him for high school or adult life.

Caution about not sharing this report with children:

Michelle and Lee are not to discuss this evaluation report with Micah or Jonah. They are not to show this report to them; it is for the parents and the Court. It would be highly inappropriate to share this information with the children and would ultimately cause them distress.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LAURA LIN,

Petitioner

VS.

NOLBERTO VILLALPANDO VAZQUEZ,

Respondent

) Case Number: FDI-23-798301

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REVIEW HEARING RE: VISITATION

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Laura Lin (Mother) and Nolberto Villalpando Vazquez (Father). They share one minor child: Victor Villalpando Lin, age 12 (DOB: 12/24/12).
- 2) On October 15, 2025, the Court appointed minor's counsel and continued the matter to November 18, 2025, for review of minor's counsel report and recommendations.
- 3) On November 6, 2025, the Court received, reviewed, and considered the update declaration filed by Mother. Mother stated she was just contacted by minor's counsel, Liz Moore, on November 3, 2025, who indicated she would come for a home visit on November 11, 2025. Mother requested that a review hearing be set in 4 months to allow minor's counsel the opportunity to build trust with the minor child.
- 4) As of November 16, 2025, no report was received by the Court from minor's counsel.
- 5) On December 19, 2025, the Court continued the matter to January 15, 2026 to allow minor's counsel to interview the parties and her client (i.e., the minor child, Victor).

- 6) On January 15, 2026, minor's counsel requested additional time to prepare a report and the Court continued the matter to February 26, 2026 to allow for receipt of the report from minor's counsel.
- 7) On February 23, 2026, minor's counsel filed a declaration and recommendations, which has been read and considered by the Court.
- 8) At the prior February 26, 2026 hearing, the court increased Father's parenting time and set a further review on Father's parenting time for May 7, 2026. Counsel for Father was ordered to prepare the Findings and Order After Hearing (FOAH) and it has yet to be prepared and submitted to the Court. This matter may be referred to Department 414 for further proceedings.
- 9) On April 27, 2026, Mother filed an update declaration that has been read and considered by the Court. Mother indicates the minor child was hospitalized, which she believes is related to Father having minimal unsupervised visits. Mother requests the Court suspend Father's visits for a minimum of 4 months.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) Counsel for Father is ordered to prepare the Findings and Order After Hearing for the February 26, 2026 hearing and submit it to the Court for signature no later than May 14, 2026.
- 3) **The parties are ordered to appear.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MATHEW LEIGH RAGONESE,

Petitioner

VS.

WILLIAM JOSEPH BROWN,

Respondent

) Case Number: FDI-24-799458

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: SPOUSAL OR PARTNER SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Matthew Leigh Ragonese and Respondent William Joseph Brown.
- 2) On 2/23/26, Petitioner filed a Request for Order on which the box for “Spousal or Partner Support” is checked in the header of form FL-300 (Request for Order); however, section 4 “Spousal or Domestic Partner Support” is not completed. Petitioner did not include any facts to support the orders requested.
- 3) Petitioner did not file an Income and Expense Declaration.
- 4) There is no Proof of Service of file evidencing Petitioner’s Request for Order was served on Respondent as required by Code of Civil Procedure section 1005(b).
- 5) Respondent did not file a Responsive Declaration.

B. Findings and Order

- 1) The Court finds good cause to VACATE the 5/7/26 hearing on Petitioner’s Request for Order filed 2/23/26 for the following reasons: (a) Petitioner’s Request for Order lacks sufficient facts in support of a spousal support order; (b) Petitioner failed to file an Income and Expense

1 Declaration, which is a mandatory form; and (c) proper service of Petitioner's Request for Order
2 was not effectuated pursuant to Code of Civil Procedure section 1005(b).

3 2) Petitioner's Request for Order is therefore DISMISSED without prejudice (i.e., Petitioner may
4 refile).

5 3) Should Petitioner wish to refile, Petitioner is strongly encouraged to seek assistance from the
6 ACCESS Center. Information for contacting the ACCESS Center can be found here:
7 <https://sf.courts.ca.gov/access-legal-self-help-center>.

8 4) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

GWENDOLYN SHETTY,

Petitioner

VS.

SACHINDEV SHETTY,

Respondent

) Case Number: FDI-24-799942

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE:CHILD SUPPORT, ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Gwendolyn Shetty and Respondent Sachindev Shetty. They share one minor child: Montara Brooke Shetty (DOB: 01/13/18).
- 2) On January 23, 2026, Petitioner filed a Request for Order (RFO) seeking guideline child support retroactive to July 5, 2024, and \$35,600 in attorney fees and costs.
- 3) On January 23, 2026, Petitioner filed a Memorandum of Points and Authorities.
- 4) On January 23, 2026, Petitioner filed Declaration of Counsel in Support of Petitioner's Request for Attorney's Fees Pursuant to Family Code §§ 2023, 271.
- 5) On January 23, 2026, Petitioner filed an Income and Expense Declaration, which includes the following information:
 - a. Filing Status: Head of Household, 1 exemption
 - b. Other Party's Income: \$24,615.00/month
 - c. Average Monthly Income: \$11,022.00/month
 - d. Union Dues: \$55.00/month

- e. Required Retirement Payments: \$448.00/month
 - f. Medical, hospital, dental and other health insurance premiums: \$771.00/month
 - g. Cash and checking accounts: \$302,003.00
 - h. Total Expenses: \$21,459.00/month
 - i. Attorney Fees Paid: \$362,227.00/month
 - j. 78% timeshare with child
- 6) On February 4, 2026, Petitioner filed a Proof of Electronic Service of the RFO and supportive pleadings.
 - 7) On March 27, 2026, Petitioner filed a supplemental declaration.
 - 8) On April 8, 2026, Respondent filed a Responsive Declaration in opposition to Petitioner's RFO. Respondent agrees to paying \$1,500 in monthly child support, which he asserts is based on "actual income" as Respondent has been unemployed since August 2024.
 - 9) On April 8, 2026, Respondent filed a Memorandum of Points and Authorities.
 - 10) On April 8, 2026, Respondent filed Declaration of Attorney in Opposition to Request for Child Support and Attorney's Fees.
 - 11) On April 8, 2026, Respondent filed an Income and Expense Declaration, which includes the following information:
 - a. Filing Status: Married Filing Separately, 3 exemptions
 - b. Other Party's Income: \$10,833.00/month
 - c. Average Monthly Income: \$.00/month
 - d. Dividends/interest: \$2083.00/month
 - e. Income from Self-Employment: \$0.00
 - f. Cash and checking accounts: \$12,600.00
 - g. Mortgage Interest: \$5450.00/month
 - h. Property Taxes: \$1900.00
 - i. Total Expenses: \$15,165.85/month
 - j. Attorney Fees Paid: \$196,701.12
 - k. 20% timeshare of minor child

12) On April 14, 2026, Petitioner filed a Reply Declaration reiterating her request for guideline child support retroactive to July 5, 2024, and \$35,600 in attorney fees and costs.

13) April 14, 2026, Petitioner filed a Reply Memorandum of Points and Authorities.

14) On April 14, 2026, Petitioner filed Declaration of Counsel in Support of Petitioner's Request for Attorney's Fees Pursuant to Family Code §§ 2023, 271.

15) April 14, 2026, Petitioner filed a Statement of Support Calculations.

16) April 14, 2026, Petitioner filed Objections and Request to Strike and Exclude Portions of Respondent's Declaration and Declaration and Declaration of Respondent's Counsel filed April 8, 2026.

B. Findings and Order

1) As a preliminary matter, the Court rules on Petitioner's Objections to Sachin's Declaration as follows:

- a. No. 1: OVERRULED
- b. No. 2: SUSTAINED
- c. No. 3: SUSTAINED
- d. No. 4: SUSTAINED
- e. No. 5: OVERRULED
- f. No. 6: SUSTAINED
- g. No. 7: SUSTAINED
- h. No. 8: SUSTAINED
- i. No. 9: SUSTAINED
- j. No. 10: SUSTAINED
- k. No. 11: SUSTAINED
- l. No. 12: OVERRULED
- m. No. 13: OVERRULED
- n. No. 14: OVERRULED
- o. No. 15: OVERRULED
- p. No. 16: OVERRULED
- q. No. 17: OVERRULED

1 r. No. 18: OVERRULED

2 s. No. 19: OVERRULED

3 t. No. 20: OVERRULED

4 u. No. 21: OVERRULED

5 v. No. 22: OVERRULED

6 2) Additionally, Court rules on Petitioner's Objections to Michael's Declaration as follows:

7 a. No. 1: SUSTAINED

8 b. No. 2: OVERRULED

9 c. No. 3: SUSTAINED

10 d. No. 4: OVERRULED

11 e. No. 5: SUSTAINED

12 f. No. 6: SUSTAINED

13 g. No. 7: SUSTAINED

14 h. No. 8: SUSTAINED

15 i. No. 9: OVERRULED

16 j. No. 10: OVERRULED

17 k. No. 11: SUSTAINED

18 l. No. 12: SUSTAINED

19 m. No. 13: OVERRULED

20 3) Petitioner's Request for Family Code section 2030 attorney's fees is DENIED. The Court does
21 not find there is a disparity in income and access to funds given the asset division contained in the
22 Memorandum of Understanding (MOU) signed by both parties and filed with the Court on
23 January 20, 2026. Notably, the MOU provides for Petitioner to receive \$1,650,000 as an
24 equalizing payment. It is uncontroverted that Respondent has a multi-million-dollar estate.
25 However, per the parties' respective Income and Expense Declarations, Respondent has \$12,500
26 in "cash and checking accounts," while Petitioner has \$302,003 in "cash and checking."
27 Respondent has been unemployed since 2024. Accordingly, based upon the facts and equities of
28 the case, the Court finds good cause to DENY Petitioner's Request for Family Code section 2030
29 attorney's fees and costs. Each party shall bear their own attorney's fees and costs.

- 1 4) Petitioner's request for family Code section 271 sanctions is also DENIED. The Court does not
2 find that Petitioner met her burden to show that the Respondent engaged in uncooperative
3 conduct.
- 4 5) Petitioner's request for guideline child support is GRANTED; however, the Court declines to
5 issue a child support order retroactive to July 5, 2024, as it is undisputed that Respondent
6 voluntarily contributed to costs and expenses Petitioner incurred for the minor child.
- 7 6) Based on the information submitted in parties' respective Income and Expense Declarations (as
8 set forth in sections 5 and 11 above), the Court finds that guideline child support is calculated to
9 be \$13.00 per monthly payable by Petitioner to Respondent (since Respondent is not currently
10 earning a monthly income). However, in Respondent's Responsive Declaration filed April 8,
11 2026, Respondent agrees to pay Petitioner \$1,500 per month in child support.
- 12 7) Given that Respondent has agreed to pay \$1,500 per month in child support and considering the
13 significant value of Respondent's estate, Court finds that there are special circumstances under
14 Family Code section 4057(b)(5)(B).
- 15 8) The Court further finds it is appropriate and in the best interest of the parties' minor child to
16 deviate from guideline child support and enter an off-guideline child support order of \$1,500 per
17 month payable by Respondent to Petitioner on the 1st of every month effective 1/23/26.
- 18 9) Respondent owes Petitioner \$6,435.48 in child support arrears for the period of 1/23/26 - 5/30/26
19 (\$435.48 for January + \$6,000 (\$1,500 x 4) for February - May). Respondent shall pay this
20 balance in full by 5/30/26.
- 21 10) Moving forward, the parties shall share equally the following add-ons going forward: childcare
22 costs related to employment or to reasonably necessary education or training for employment
23 skills, reasonable uninsured healthcare costs for the child, and the reasonable costs associated
24 with mutually agreed upon extracurricular activities. Neither party shall unreasonably withhold
25 consent for a child to participate in an activity. The procedure to make or pay a reimbursement
26 claim for these child support add-ons shall be as set forth in Judicial Council Form FL-192.
- 27 11) Counsel for Petitioner shall prepare the Findings and Order After Hearing, which shall include as
28 an attachment the forms FL-342 and FL-192.
29

1 12) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
2 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
3 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
4 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
5 proposed order after hearing directly to the court. Failure to submit the order after hearing within
6 10 days may allow the other party to prepare a proposed order and submit it to the court in
7 accordance with CA Rules of Court, Rule 5.125(d).

Fixed Shares	Father	Mother	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	1	2026			
% time with NCP	22.00 %	0.00 %		Comb. net spendable	9300	9300
Filing status	MFS->	HH/MLA	GUIDELINE	Percent change	0%	0%
# exemptions	1	2 *	Nets(adjusted)	Father		
Wages+salary	0	11022	Father	2005		
Self-employed income	0	0	Mother	7296	13	13
Other taxable income	2083	0	Total	9300	2017	2017
TANF+CS received	0	0	Support		0	0
Other nontaxable income	0	0	Addons	0	% of combined spendable	22%
New spouse income	0	0	Guideln CS	13	% of saving over guideline	0%
401(k) employee contrib	0	0	S.Clara SS	0	Total taxes	78
Adjustments to income	0	0	Total	13	Dep. exemption value	0
SS paid prev marriage	0	0			# withholding allowances	0w
CS paid prev marriage	0	0	Settings changed		Net wage paycheck	0
Health insurance	0	771		Mother		
Other medical expense	0	0			Payment cost/benefit	-13
Property tax expense	1900	0			Net spendable income	7283
Ded interest expense	5450	0	Proposed		Change from guideline	0
Charitable contributions	0	0	Tactic 9		% of combined spendable	78%
Misc tax deductions	0	0	CS	13	% of saving over guideline	0%
Qual bus income ded	0	0	SS	0	Total taxes	2452
Required union dues	0	55	Total	13	Dep. exemption value	0
Mandatory retirement	0	448			# withholding allowances	0
Hardship deduction	0 *	0 *	Saving	0	Net wage paycheck	7951
Other GDL deductions	0	0	Releases	0		
Child care expenses	0	0				

Mother pays Guideline CS, Proposed C

FC 4055 checking: ON

Per Child Information

	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children	22 - 78	0	0	0 Father	13 Mother	13 Mother
	22 - 78	0	0	0 Father	13 Mother	13 Mother

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HUAICHUN LEI,

Petitioner

VS.

NAJIAN HUANG,

Respondent

) Case Number: FDI-24-799990

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS,
DATE OF SEPARATION; DISPUTE TRANSACTIONS; PROCEDURAL POTECTION 730 REP

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

1. The parties are Petitioner Huaichun Lei and Respondent Najian Huang. The parties were married on March 13, 2015. They share two minor children.
2. On 7/11/24, Petitioner filed a Petition for Dissolution listing the date of separation as 4/1/19.
3. On 8/16/24, Respondent filed a Response and Request for Dissolution listing the date of separation as 7/19/24. Respondent checked item 8a. on her Response, indicating a request for spousal support orders.
4. On 11/14/24, Respondent filed a Request for Order seeking child custody, visitation, and child support, but not spousal support. The child support request was later transferred to Department 416 (now Department 414).
5. On 5/22/25, the Court made a series of orders regarding businesses owned by Petitioner, Blue Mountain Payments (BMP) and N&H Investment LLC. The Court then stayed those orders on

1 11/26/25 and recommended that Respondent consider retaining a joint 730 expert for business
2 characterization and valuation.

3 6. On 7/1/25, the Court ordered Petitioner to pay Respondent guideline child support in the amount
4 of \$4,405.00 retroactive to 12/01/24 and payable on the first day of the based on Petitioner having
5 a 25% timeshare with the children.

6 7. On 2/24/26, Respondent filed Request for Order in which she seeks spousal support, attorney fees
7 and other miscellaneous relief. In particular, she seeks 1) a determination as to the date of
8 separation; 2) orders regarding disputed transactions, payroll and personal expenses; 3)
9 “procedural protections” regarding a section 730 expert report; and 4) \$10,000 in attorney’s fees
10 and costs. Finally, Respondent contends that Petitioner owes \$25,251.32 in child support arrears
11 but does not explicitly request any orders regarding the alleged arrears.

12 8. On 02/24/26, Respondent filed an Income and Expense Declaration in which she states the
13 following:

14 a. Income: \$10,000.00 per month.

15 b. Tax Filing Status: Married, filing separately.

16 c. 2 minor children (75% timeshare to Mother)

17 d. Health Insurance Premiums: \$100.00/month

18 e. Property Tax: \$1000.00/month (no mortgage payment is listed, nor is there any entry for
19 interest.)

20 f. Total Expenses: \$9600.00

21 g. Attorney Fees Paid: Section was left blank.

22 h. Daycare: \$1000.00/month

23 9. On 3/13/26, Petitioner filed Responsive Declaration opposing Respondent’s requested orders.

24 Petitioner asserts that Respondent has substantial monthly income and that his own ability to pay
25 spousal support is limited, as the current child support order is based on inflated income, and he is
26 paying \$1,100 in arrears in addition to \$4,400 in ongoing support. Petitioner contends there is no
27 income disparity warranting attorney’s fees and costs. He requests the Court reserve jurisdiction
28 over the date of separation, deny Respondent’s remaining requests as vague and unsupported, and
29 award \$5,000 in sanctions under Family Code section 271.

1 10. On 03/13/26, Petitioner filed an Income and Expense Declaration in which he states the
2 following:

3 a. Income:

4 i. Wages: \$5,500.00 per month.

5 ii. IHHS: \$2580.81

6 iii. Rental Income: \$385.52

7 iv. Self-Employed: \$274.30 (However, the Court thoroughly reviewed his P/L for
8 Blue Mountain Payments for 2025 show his profits less expenses totaled
9 \$355,128.12 for the 12 month period.) Therefore, it appears that his true monthly
10 gris \$29,594.01.

11 v. N&H Investment LLC: \$4,626.19 per month.

12 b. Tax Filing Status: Married, filing separately.

13 c. 2 minor children (75% timeshare to Mother)

14 d. Health Insurance Premiums: \$100.00/month

15 e. Property Tax: \$1500.00/month (no mortgage payment is listed, nor is there any entry for
16 interest.)

17 f. Total Expenses: \$8,775.00

18 g. Attorney Fees Paid: \$71,312.50

19 h. Daycare: \$1000.00/month

20 11. On 3/16/26, Respondent filed a declaration with an attachment purportedly demonstrating that
21 Petitioner's claims of limited income are inaccurate and misleading. The declaration attaches
22 numerous financial documents.

23 12. On 3/19/26, Petitioner filed an objection to Respondent's 3/16 declaration on the basis that it
24 introduces new evidence on reply. Petitioner contends that Respondent's analysis of his income is
25 flawed and reiterates his request for section 271 sanctions against Respondent on the basis that
26 she has filed multiple requests for orders as a procedural tactic designed to delay proceedings and
27 increase Petitioner's attorney fees.

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13. On 3/23/26, Respondent filed a declaration attaching further financial information meant to demonstrate Petitioner's purported ability to pay temporary spousal support and need based attorney's fees.

B. Findings and Order

1. Respondent's request for guideline spousal support is GRANTED.

2. In accordance with the XSpouse report attached hereto and incorporated herein, spousal support shall be payable by Petitioner to Respondent in the amount of \$2,840.00 per month on the 1st day of each month, commencing March 1, 2026. The parties shall meet and confer regarding payment of arrears owed to Respondent based on this order.

3. Respondent's request for attorney's fees is DENIED. There is no showing of disparity in access to funds and given the amount of support ordered, the Court finds Petitioner does not have the ability to pay any of Respondent's attorney fees.

4. As to the additional relief requested by Respondent, the Court finds good cause to order as follows:

a. Determination as to the date of separation is RESERVED for trial; this is an issue that is better suited for adjudication at the time of trial.

b. Orders regarding disputed transactions, payroll, and personal expenses is RESERVED for trial; this is also an issue that is better suited for adjudication at the time of trial.

c. Order re: "procedural protections" regarding a section 730 expert report is DENIED as the Court unclear what the moving party is requesting.

d. Order that Petitioner owes \$25,251.32 in child support arrears is DENIED without prejudice as the moving party has sought enforcement through the San Francisco Department of Child Support Services. Respondent shall ask the Department of Child Support Services to file a motion seeking a determination of arrears on her behalf.

5. Counsel for Petitioner shall prepare the Findings and Order After Hearing.

6. **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the

1 proposed order after hearing directly to the court. Failure to submit the order after hearing within
2 10 days may allow the other party to prepare a proposed order and submit it to the court in
3 accordance with CA Rules of Court, Rule 5.125(d).
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Fixed Shares	Father	Mother	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	2	2026			
% time with NCP	25.00%	0.00%				
Filing status	MFS->	<-MFS	GUIDELINE	Comb. net spendable	30915	30915
# exemptions	1 *	3	Nets(adjusted)	Percent change	0%	0%
Wages+salary	0	12963	Father 21800	Father		
Self-employed income	29594	0	Mother 9115	Payment cost/benefit	-2840	-2840
Other taxable income	7592	0	Total 30915	Net spendable income	18960	18960
TANF+CS received	0	0	Support	Change from guideline	0	0
Other nontaxable income	0	0	Addons 0	% of combined spendable	61%	61%
New spouse income	0	0	Guideln CS 0	% of saving over guideline	0%	0%
401(k) employee contrib	0	0	S.Clara SS 2840	Total taxes	1538€	1538€
Adjustments to income	0	0	Total 2840	Dep. exemption value	0	0
SS paid prev marriage	0	0		# withholding allowances	0w	0w
CS paid prev marriage	0	0	Settings changed	Net wage paycheck	0	0
Health insurance	0	100		Mother		
Other medical expense	0	0		Payment cost/benefit	2840	2840
Property tax expense	0	0		Net spendable income	11956	11956
Ded interest expense	0	0	Proposed	Change from guideline	0	0
Charitable contributions	0	0	Tactic 9	% of combined spendable	39%	39%
Misc tax deductions	0	0	CS 0	% of saving over guideline	0%	0%
Qual bus income ded	0	0	SS 2840	Total taxes	3748	3748
Required union dues	0	0	Total 2840	Dep. exemption value	0	0
Mandatory retirement	0	0		# withholding allowances	0	0
Hardship deduction	0 *	0 *	Saving 0	Net wage paycheck	8508	8508
Other GDL deductions	0	0	Releases 0			
Child care expenses	0	0				

Father pays Guideline SS, Proposed SS

FC 4055 checking: ON

Per Child Information

	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children	25 - 75	0	0	0 Father	0 Father	0 Father
	25 - 75	0	0	0 Father	0 Father	0 Father
	25 - 75	0	0	0 Father	0 Father	0 Father

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOANNA GING,

Petitioner

VS.

BENSON HO,

Respondent

) Case Number: FDI-24-800588

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ENFORCE 11/19/25 FOAH, EARNINGS ASSIGNMENT ORDER, AND
SECTION 271 SANCTIONS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Joanna Ging (Wife) and Respondent Benson Ho (Husband). They share
no minor children.
- 2) On February 17, 2026, Wife filed a Request for Order seeking the following orders:
 - a. Enforce the Findings and Order After Hearing filed November 19, 2025 and order
Husband to immediately pay all amounts of temporary spousal support and attorney's
fees owed, with statutory interest at a rate of 10% per annum.
 - b. In the alternative, the Court issue an earnings assignment order for collection of all
unpaid spousal support and attorney's fees as ordered in the Findings and Order After
Hearing filed on November 19, 2025, with statutory interest at a rate of 10% per annum.
 - c. Order that any amounts remaining unpaid at the conclusion of this divorce case, including
accrued interest, be charged against and paid from Husband's share of the community
property.

- d. Order Husband to pay \$5,000.00 in sanctions pursuant to Family Code section 271 for attorney fees and costs Wife incurred in bringing this motion as a direct result of Husband's failure to comply with this Court's prior orders, which has unnecessarily increased litigation costs and caused prejudice to Joanna.
- 3) On February 17, 2026, Wife filed a "Declaration of Attorney Charles A. Young in Support of Petitioner's Request for Order to Enforce the Findings and Order After Hearing filed 11/19/25, Request for Earnings Assignment Order and For Family Code Section 271 Sanctions," which has been read and considered by the Court.
- 4) On February 24, 2026, Wife filed a Proof of Electronic Service of the February 17, 2026 Request for Order. However, there is nothing in the Court's file that indicates Husband consented to electronic service. Even if Husband consented to electronic service, a "San Francisco Superior Court (Unified Family Court) Notice and Instructions for Remote Appearances, and SFUFC Tentative Ruling Instructions" were not served with the moving paperwork. See California Rules of Court, Rule 2.251.
- 5) Respondent did not file a Responsive Declaration.

B. Findings and Order

- 1) Petitioner is ordered to effectuate service by mail and directed to serve on Respondent all of the required documents along with her Request for Order (i.e., at least 20 calendar days prior to the next Court hearing, Petitioner shall file and serve on Respondent the (a) Request for Order, (b) Continuance Order contained herein, and (c) Tentative Ruling Instructions using a service method authorized by the Code of Civil Procedure).
- 2) The matter is **continued to June 30, 2026 at 9:00 a.m., in Department 403** to allow Petitioner to effectuate proper service of all required documents.
- 3) In addition, Petitioner is directed to submit an Application to Determine Arrears (FL-490) along with the required Declaration of Payment History (FL-420), and a Payment History Declaration (FL-421) if any payments have been made Respondent. The Application to Determine Arrears and the supporting documents set forth above should also be filed and served prior to the next hearing.

1 4) Finally, Petitioner is directed to submit a proposed Earnings Assignment Order to the Court for
2 signature.

3 5) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

BRETT LAMY,

Petitioner

VS.

LIANA DIMAURO,

Respondent

) Case Number: FDI-25-800840

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

MOTION FOR JOINDER OF ADDITIONAL PARTIES

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Brett Lamy and Respondent Liana DiMauro.
- 2) On 1/21/25, Petitioner filed a Petition for Dissolution indicating the date of marriage is 9/19/22 and date of separation is 12/8/24 for marriage of 2 years and 2 months.
- 3) On 1/28/26, Respondent filed a Response and Request for Dissolution indicating the date of marriage is 9/19/22; however, the date of separation is 8/18/24.
- 4) On 4/10/26, Petitioner filed a Notice of Motion and Declaration of Joinder seeking to join a third-party, Paul DiMauro (Respondent's father), to the instant dissolution action because Paul holds title to an investment made during marriage that is controlled by the parties' premarital agreement and requires characterization as separate or community property. Petitioner states he filed a separate civil action (case no. CGC-25-629933) though resolution of the civil case is contingent upon this Court's characterization of property. It is Petitioner position that maintaining parallel civil and family court proceedings risks duplicative litigation and incontinent rulings. Petitioner

1 asserts that he would dismiss the civil action if Paul DiMauro were joined in the dissolution
2 action.

3 5) On 4/10/26, Petitioner filed a supportive attorney declaration.

4 6) On 4/10/26, Petitioner filed a Memorandum of Points and Authorities.

5 7) On 4/28/26, Respondent filed a Responsive Declaration. Respondent consents to an order of
6 joinder of Paul DiMauro and Diane DiMauro (Respondent's parents) as parties to the dissolution
7 proceeding. It is Respondent's position that characterization of the investment cannot be resolved
8 with the DiMauros' participation as parties, and joinder serves judicial economy, promotes
9 finality, and avoids the risk of inconsistent rulings in parallel proceedings.

10 **B. Findings and Order**

11 1) The Court has discretion to join a third-party holding property in which one of the spouses claims
12 a community interest. See Family Code section 2021; *Marriage of Siller* (1986) 187 CA3d 36,
13 42.

14 2) However, exercising such discretion is extremely rare and requires that the Court find joinder of a
15 third-party is the only reasonable path given the highly personal nature of dissolution
16 proceedings. *Schnabel v. Sup.Ct.* (1994) 30 CA4th 758, 763.

17 3) Additionally, the required criteria set forth in California Rules of Court, rule 5.24(c) and (e)(2)
18 includes a finding, "that the person to be joined as a party is either indispensable for the court to
19 make an order about that issue or is necessary to the enforcement of any judgment rendered on
20 that issue."

21 4) It is undisputed that Paul DiMauro and Diane DiMauro hold title to an investment made during
22 marriage that is controlled by the parties' premarital agreement and requires characterization as
23 separate or community property because Respondent claims an interest. The Court therefore finds
24 that Paul DiMauro and Diane DiMauro are indispensable and necessary parties to the dissolution
25 action as the nature of the investment prevents a retitling order.

26 5) Accordingly, Petitioner's Notice of Motion and Declaration of Joinder is GRANTED. Paul
27 DiMauro and Diane DiMauro are hereby joined as parties to the dissolution action.

28 6) The Court reserves jurisdiction over the characterization of the investment.

29 7) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHAEL SHAO,

Petitioner

VS.

XIU HONG LI,

Respondent

) Case Number: FDI-25-801214

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER LEAVE OF COURT TO FILE SECOND AMENDED PETITION FOR
DISSOLUTION OF MARRIAGE; REQUEST FOR ORDER RE: SPOUSAL SUPPORT, ATTORNEY
FEES, AND RESTAURANT PROCEEDS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

I. Petitioner's Request for Order filed 1/5/26

A. Procedural History

- 1) The parties are Petitioner Michael Shao and Respondent Xiu Hong Li.
- 2) On 4/10/25, Petitioner filed a Petition for Dissolution.
- 3) On 5/5/25, Respondent filed a Response and Request for Dissolution, which indicates the date of marriage is 1/17/03 and date of separation is 4/7/25 for a marriage of 22 years and 3 months.
- 4) On 5/9/25, Petitioner filed an amended Petition for Dissolution, which indicates the date of marriage is 1/17/03 and date of separation is 4/7/24 for a marriage of 21 years and 3 months.
- 5) On 1/5/26, Petitioner filed a Request for Order and supportive declaration seeking leave of Court to file a second amended petition to correct mistakes of fact regarding the date of separation and listings of assets and debts and update the sections regarding spousal support and attorney's fees. Petitioner asserts he was not represented by counsel when the petition was filed.

- 6) On 1/5/26, Petitioner filed a Memorandum of Points and Authorities.
- 7) On 1/5/26, Petitioner filed a supportive attorney declaration
- 8) On 4/22/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for Order asserting that she would be prejudiced if Petitioner were permitted to file a second amended petition.

B. Findings and Order

- 1) The Court sees no prejudice to Respondent in granting Petitioner's request for leave of Court to file a second amended petition to correct mistakes of fact regarding the date of separation and listings of assets and debts and update the sections regarding spousal support and attorney's fees.
- 2) Accordingly, and in the furtherance of justice, Petitioner's request to file a second amended petition is hereby granted.

II. Respondent's Request for Order filed 2/10/26

A. Procedural History

- 1) On 2/10/26, Respondent filed a Request for Order seeking guideline temporary spousal support, \$15,000 in attorney's fees and costs, and an order for Petitioner to pay Respondent half the net proceeds from five allegedly community property restaurants currently in Petitioner's control. Respondent claims that it is undisputed that the five restaurants were opened during marriage with community funds. Respondent asserts that according to Petitioner's 2024 tax return (see Exhibit A), Petitioner earned \$552,831 in annual income and according to a jointly filed 2023 tax return (see Exhibit B), Petitioner earned \$714,937 in annual income. Respondent attaches a proposed XSpouse calculation (see Exhibit C). Respondent states that she is additionally requesting the Court order Petitioner to pay Respondent 50% of restaurant proceeds for which she has limited information though asserts she is entitled to half. Respondent believes Petitioner's share of the profit from the restaurants in 2024 was \$330,251 and in 2023 was \$461,778. Respondent requests \$15,000 in attorney's fees and costs under Family Code section 2020 asserting that Petitioner's monthly earnings is \$46,049 while Respondent's is \$2,715. The matter was set for hearing on 5/5/26 and was continued to 5/7/26 on the Court's own motion.
- 2) On 2/10/26, Respondent filed an Income and Expense Declaration.

- 3) On 2/10/26, Respondent filed an attorney declaration substantiating her request for \$15,000 in attorney's fees and costs.
- 4) On 4/22/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for Order. Petitioner asserts that division of property or debts is a trial issue therefore Respondent's request for a Court order that Petitioner pay Respondent half the net proceeds from the five restaurants should be denied pending trial. Petitioner asserts that Respondent is self-supporting, and he is nearing retirement age, so should not be ordered to pay temporary spousal support. Petitioner asserts that if the net proceeds from the restaurants are divided, then the proceeds from Respondent's daycare should also be divided.
- 5) On 4/22/26, Respondent filed an Income and Expense Declaration.
- 6) On 4/29/26, Respondent filed a Reply Declaration reiterating her request and providing clarification regarding her position on the parties' respective financial situations.

B. Findings and Order

- 1) Petitioner's request for guideline temporary spousal support is GRANTED effective 2/10/26.
- 2) In accordance with the XSpouse report attached hereto and incorporated herein, Petitioner shall pay to Respondent \$1,784 per month in guideline temporary spousal support. Petitioner shall pay this amount to Respondent no later than the 1st of every month.
- 3) Petitioner owes Respondent \$6,498.85 in temporary guideline spousal support arrears for the period of 2/10/26 – 5/30/26 (\$1,146.85 for February + \$5,352 (\$1,784 x 3) for March – May). Petitioner shall pay an additional \$500 per month until this balance is paid in full.
- 4) The XSpouse is based on the following findings:
 - a. Per Petitioner's Income and Expense Declaration filed 4/22/26, Petitioner earns \$11,000 in average monthly income.
 - b. Per Respondent's Income and Expense Declaration filed 4/29/26, Respondent:
 - i. Receives \$1,112 in average monthly social security retirement;
 - ii. Accrues \$781 in average monthly dividends;
 - iii. Earns \$1,000 in average monthly self-employment income; and
 - iv. Pays \$203 in average monthly health insurance premiums.

1 5) Respondent's request for \$15,000 in Family Code section 2030 attorney's fees is GRANTED.

2 The attached XSpouse shows that, after temporary guideline spousal support is paid, Petitioner
3 will have 57% of the parties' combined net spendable income and Respondent will have 43% of
4 the parties' combined net spendable income. Petitioner states that he has \$700,000 in cash savings
5 while Respondent states she has \$500,000 in cash savings. Based on the forgoing, the Court finds
6 an award of attorney's fees and costs is appropriate here because there is a demonstrated disparity
7 between the parties in access to funds to retain or maintain counsel and in the ability to pay for
8 legal representation. The Court finds Petitioner has or is reasonably likely to have the ability to
9 pay for legal representation for both parties and \$15,000 in attorney's fees and costs are
10 reasonable and necessary. Petitioner shall pay this balance in full by 6/7/26.

11 6) The Court reserves jurisdiction over Respondent's request for a Court order that Petitioner pay
12 Respondent half the net proceeds from the five restaurants for trial.

13 7) Counsel for Respondent shall prepare the Findings and Order After Hearing.

14 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
15 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
16 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
17 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
18 proposed order after hearing directly to the court. Failure to submit the order after hearing within
19 10 days may allow the other party to prepare a proposed order and submit it to the court in
20 accordance with CA Rules of Court, Rule 5.125(d).

2026		Xspouse 2026-1-CA				Monthly Figures			Monthly Figures		
		Husband	Wife			Monthly Figures		Cash Flow		Guideline	Proposed
Fixed Shares		0	0			2026					
Number of children	Percent	0.00%	0.00%					Combined net spendable		10214	10214
time with NCP	Filing status	SINGLE	HH/MLA					Percent change		0%	0%
Number of exemptions		1	1			GUIDELINE					
Wages and salary		11000	0			Nets (adjusted)		Husband			
Self employed income		0	1000	Husband		7656		Payment cost/benefit		-1784	
Other taxable income		0	1893	Wife		2558		Net spendable income		5873	
TANF CS received		0	0	Total		10214		Change from guideline		0	
Other nontaxable income		0	0			Support		% of combined spendable		57%	
New spouse income		0	0	Addons		0		% of saving over guideline		0%	
Employee 401-k contribution		0	0	Guideln CS		0		Total taxes		3344	
Adjustments to income		0	0	S.Clara SS		1784		Dep. exemption value		0	
SS paid prev marriage		0	0	Total		1784		# withholding allowances		0	
CS paid prev marriage		0	0			-		Net wage paycheck		7392	
Health insurance		0	203			Proposed		Wife			
Other medical expenses		0	0			Tactic 9		Payment cost/benefit		1784	
Property tax expenses		0	0					Net spendable income		4342	
Ded interest expense		0	0	CS		0		Change from guideline		0	
Contribution deduction		0	0	SS		1784		% of combined spendable		43%	
Misc tax deductions		0	0	Total		1784		% of saving over guideline		0%	
Qualified business income deduction		0	0	Saving		0		Total taxes		132	
Required union dues		0	0	Releases		0		Dep. exemption value		0	
Mandatory retirement		0	0					# withholding allowances		0	
Hardship deduction		0	0					Net wage paycheck		0	
Other GDL deductions		0	0								
Child care expenses		0	0								

Husband pays Guideline SS, Proposed SS

FC 4055 checking: ON

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		0 - 0	0	0	0 Husband	0 Husband	0 Husband

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AMIT MEHTA,
Petitioner

VS.

COURTNEY MEHTA,
Respondent

) Case Number: FDI-25-802312

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: BIFURCATE THE ISSUE OF VALIDITY AND ENFORCEABILITY OF
PRENUPTIAL AGREEMENT; COMPEL ARBITRATION IN TEXAS PER PRENUPTIAL
AGREEMENT

TENTATIVE RULING

**The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by
Zoom video. If a party chooses to appear by video, that party must abide by the Notice and
Instructions for Remote Appearances in San Francisco Family Court set forth above.**

A. Procedural History

1) The parties are Petitioner Amit Mehta (Father) and Respondent Courtney Mehta (Mother). They
share one minor child: Aadi, age 2 (DOB: 10/22/23).

2) At the prior 3/17/26 hearing, the Court granted Father's request to bifurcate of the validity of the
parties' premarital agreement and compel arbitration finding that the parties' premarital
agreement (attached as Exhibit A to Mother's 12/16/25 Request for Order) requires the parties
submit to binding arbitration "any dispute or controversy regarding the validity, interpretation, or
enforceability of this agreement, as well as issues involving its enforcement in connection with a
dissolution proceeding between the parties." The Court noted this arbitration clause includes an
agreement for appointment of an arbitrator who is in good standing with the State Bar of Texas. See
Findings and Order After Hearing (FOAH) filed 4/3/26.

1 3) Accordingly, the Court set a review hearing for 5/7/26 at 9 AM in Dept. 403 for the parties to
2 update the Court as to the status of arbitration and ordered the parties submit update declarations
3 to the Court at least 10 days in advance of this hearing. See FOAH filed 4/3/26.

4 4) On 4/27/26, Father filed an update declaration indicating that Father proposed (via email to
5 counsel for Mother on 4/19/26) Judge David Farr (Ret.) or Judge Roy Ferguson (Ret.) to conduct
6 the arbitration of the validity of the parties' premarital agreement. According to Father, both
7 proposed arbitrators are in good standing with the State Bar of Texas. Father states that counsel
8 for Mother responded on 4/21/26, stating that Mother was considering these and other options.
9 Father asserts that he received no further commination – proposals or feedback – from Mother.
10 Father requests the Court appoint Judge David Farr (Ret.) to conduct the arbitration.

11 **B. Findings and Order**

12 1) **The parties are ordered to appear.** Given that Mother failed to file an update declaration as
13 ordered by the Court, the Court is inclined to grant Father's request for the Court to appoint Judge
14 David Farr (Ret.) to conduct the arbitration.